ON-CALL MAINTENANCE AND REPAIR CONTRACT
CITY OF LITTLETON FACILITIES

THIS **ON-CALL MAINTENANCE AND REPAIR CONTRACT** ("Agreement") is by and between the **CITY OF LITTLETON, COLORADO**, a home-rule municipal corporation of the State of Colorado, and _____, a [State of Formation] [type of entity], with a principal place of business at _____ ("Contractor"). The City and Contractor may be referred individually as a "Party" or collectively as the "Parties."

RECITALS

WHEREAS the City has identified a need for qualified and competent contractors to perform, as assigned, maintenance and repair as directed by the City on an "on-call" or "as-needed" basis; and

WHEREAS work will generally consist of performance of preventative, remedial, and emergency maintenance and repair services required on a variety of as yet to be identified projects as assigned by the City in accordance with Exhibit A, attached hereto; and

WHEREAS the Contractor is willing and able and has the present capacity to perform all of the services required under this Agreement.

AGREEMENT

The recitals set forth above are incorporated herein as set forth in their entirety. In consideration of the premises and the mutual covenants herein contained, and subject to the terms and conditions in this Agreement, the Parties agree as follows:

1. **CONTRACT DOCUMENTS AND EXHIBITS**. The Agreement shall consist of this Agreement together with the following:

   Exhibit A Scope of Work
   Exhibit B Billing Rates
   Exhibit C Payment and Performance Bond

   All exhibits referred to in this Agreement are attached hereto and are, by reference, incorporated herein for all purposes. In the event any matter, term, provision, or condition that is the subject of this Agreement requires clarification or is in dispute, or is the subject of a difference of opinion, the purpose and intent of the Agreement shall be first ascertained by reference to the Contract Documents in their entirety. In the event of any dispute or differences between the respective documents that constitute the Contract Documents, then the Contractor shall secure the written instructions from

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the City before proceeding with the performance of the Work affected by such conflicts, omissions or discrepancies.

2. **SCOPE OF SERVICES.** This Agreement contemplates performance of on-call preventative, remedial and emergency services by the Contractor on a variety of yet to be identified projects on an "as-needed" or "on-call" basis. It is anticipated that the Contractor's scope of work may entail services as set forth in the Scope of Work, **Exhibit A** (the "Work").

a. **Oversight.** Contractor shall conduct the Work under the general direction of and in coordination with the City of Littleton Facilities Manager or other designated representative ("Designee"), and the City employee(s) assigned to manage the Work ("Project Manager") and make every reasonable effort to fully coordinate the Work with any City agency or any person or firm under contract with the City doing work which affects the Contractor's Work. The Contractor agrees to allow the City to review any of the procedures used by it in doing the Work under this Agreement and to make available for inspection all notes and other documents used in performing the Work.

b. **Non-Exclusivity.** The Contractor agrees and acknowledges that this Agreement does not create an exclusive right to perform all Work for which the City may contract for the type of service(s) described in Exhibit A. The City may enter into agreements with other contractors to perform the same or similar services and reserves the right to select, at the discretion of the City, the contractor that is most cost effective, best suited, and/or most readily able to perform the requested work.

c. **Cooperation with Other Contractors**. In connection with the improvements under this Contract, the right is reserved by the City to award any Work not included in the Contract to another contractor for performance during the progress of this Contract, or to perform such Work with the City's forces, and the Contractor shall cooperate and so conduct its operation as to minimize the interference therewith, as directed by the Project Manager.

d. **Work Order.** As the City determines the need and availability of funding for services, the City will issue a written Work Order to the Contractor detailing the nature and extent of services to be provided, the location of the project, and the timeframes within which the project is to be performed, with a projected amount to be paid to the Contractor based on the Work items described in the scope. **Exhibit B** attached hereto and incorporated herein by reference contains the Billing Rates, which the Contractor acknowledges and affirms that the City may rely upon in the preparation of Work Orders as provided herein. The Contractor shall, within as quickly as possible, and in good faith, confirm the scope of services detailed therein and the associated Work amount, all of which must be in accordance with the terms and conditions of this Agreement, and respond back in writing to the City as to the Contractor's ability to initiate and complete the Work in the timeframes

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specified in the Work Order. The Contractor shall diligently prosecute the Work to completion using its best efforts, highly skilled work effort and attention. The Contractor assumes all responsibility and risks, including any additional work or additional costs, for failure to confirm the completeness and accuracy of the Work Order and the amount, including any inquiries with the City as to any directions or specification in the Work Order which are not clear. Confirmation includes, but is not restricted to, inspections of the Work site and inquiries with the City as to any directions or specifications in the Work Order which are not clear.

No Work shall commence until the City issues the Contractor a Work Order that has been executed by both Parties, and, if required by the City, until after approval by the City Council. The City shall have no obligation to pay the Contractor for work performed without an executed written Work Order.

e. **Changes in Work**. The City and the Contractor may determine that changes in the scope of services for the Work is necessary. Such changes shall be mutually agreed upon and shall be incorporated in writing and properly authorized Change Orders. Any claims by the Contractor for adjustment as a result of the changes in the scope of services must be made in writing prior to performance of the Work in any Work Order.

3. **TERM OF AGREEMENT.** This Agreement will become effective and binding on all Parties upon execution of the Agreement and shall expire two (2) years after execution, unless terminated earlier pursuant to this Agreement. Notwithstanding the foregoing, all terms set forth herein are subject to appropriation and the termination provisions set forth below in Section 9 of this Agreement.

4. **CONTRACT PRICE.** The City shall pay the Contractor for the performance of all the Work required under each authorized and executed written Work Order, as requested by the City and in accordance with **Exhibit B**, and any applicable Special Conditions. In no event shall the total amount of compensation by the City for Work under this Agreement exceed $_____("Not-To-Exceed Amount"). The City shall make payment(s) to Contractor in the manner and at such times as set forth in the Standards and Specifications. Should a Work Order price exceed one-hundred and fifty-thousand dollars ($150,000.00), the City shall deduct and retain five (5) percent from the total amount of each approved invoice, including Change Orders. The City may also deduct in addition to retainage as stated above, the additional amount(s) of any and all outstanding claims pursuant to Colorado Revised Statute ("C.R.S.") §38-26-107 from each approved invoice.
   The percentage markup for parts and materials shall remain unchanged throughout the Agreement's term.
   The hourly rate and mobilization fee contained in Exhibit B shall increase automatically each year by three percent (3%), and provided that any such increase is subject to the appropriation of funds in accordance with Section 5.

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5. **PAYMENTS TO CONSTITUTE CURRENT EXPENDITURES.** Notwithstanding any other term, provision, or condition herein, all financial obligations of the City, if any, are contingent on funds for that purpose being appropriated, budgeted and otherwise made available by the City Council for the City of Littleton. The City's obligations under the Agreement shall not constitute a multiple-fiscal year direct or indirect debt or other financial obligation of the City within the meaning of Article X, Section 20 of the Colorado Constitution. **The Contractor is hereby notified that the City intends to encumber funds on a Work Order-basis**. In no event shall the issuance of any Change Order be considered binding if the aggregate amount payable exceeds this Agreement's Not-To-Exceed Amount, unless the City first gives written notice to the Contractor that lawful appropriations to cover the costs of such additional work have been made or unless such work is covered under a remedy-granting provision of this Agreement. For purposes of this section, "remedy-granting provision" shall be defined as set forth in C.R.S. § 24-91-103.6(4). Any Work undertaken or performed in excess of the amount appropriated and encumbered is performed in violation of the terms of the Agreement and at the Contractor's sole risk and expense.

6. **CONTRACTOR OBLIGATIONS. The Contractor shall perform as follows:**

    a. The Contractor shall complete each Work Order in accordance with generally accepted professional practices and to the level of competency presently maintained by other practicing professionals in the same type of work in the Contractor's community.

    b. Each Work Order shall be performed within the time specified in the Work Order, and in accordance with the City of Littleton Municipal Code, General Conditions, applicable Special Provisions, and any other applicable jurisdictional regulations.

    c. The Contractor shall furnish, unless otherwise provided in writing, all materials, implements, machinery, equipment, tools, supplies, transportation and labor necessary to perform and complete the Work. The Contractor shall maintain quality control of all materials, implements, machinery, equipment, tools, supplies transportation and all labor used in association with any Work.

    d. The Contractor shall be responsible for taking all steps reasonably necessary to ascertain the nature and location of the Work, and the general and local conditions which can affect the Work or the cost of the Work. Failure by the Contractor to do so will not relieve it from responsibility for successfully performing Work without additional expense to the City. The City will not be responsible for any understanding or representations concerning

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conditions unless such understanding or representations are expressly stated in the Agreement

e. The Contractor shall, at its own expense, obtain and maintain all permits or licenses, including any prescribed governmental authorizations or approvals, required for the performance of the Work and shall demonstrate, if requested, what actions the Contractor has taken to comply with the required permits, licenses, authorizations, or approvals. Any tasks specified under this Agreement that require the employment of licensed or registered personnel shall be performed by licensed or registered personnel.

f. Should any construction or conditions which are not thoroughly stipulated or set forth by the specifications be anticipated on any proposed project, Special Provisions for such Work may be prepared and attached to the Work Order, and shall be considered as part of this Agreement, the same as though contained fully therein. Should any Special Provisions conflict with this Agreement, the Special Provisions will govern.

g. The Contractor shall perform all Work in compliance with the most recent editions of the applicable International Code Council ("ICC") codes, as adopted within Title 4 of the Littleton Municipal Code, and all other applicable provisions of the Littleton Municipal Code, including the City of Littleton Engineering Design Standards and Specifications (collectively the "Specifications"). The Work Order Special Provisions may supplement or modify the Specifications. In the event of any conflict, the Work Order Special Provisions shall take precedence over the Specifications, Supplemental Specifications, and any Plans.

h. If applicable, for any Federally-funded projects, the Contractor shall maintain registration in the System for Award Management ("SAM") and obtain a Unique Entity Identifier ("UEI") during the term of any Work Order and through final payment. The Contractor is responsible for the currency, accuracy, and completeness of the information within SAM, and for any liability that may accrue as a result of the City's reliance on the Contractor's inaccurate or incomplete information.

i. Wherever a number of days is specified in this Agreement or any Work Order, it shall mean calendar days unless otherwise specified.

7. **BONDING**

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a. A Performance and Payment bond, in the form included in the Contract Documents, shall be furnished covering all Work Orders performed hereunder. An initial bond in the amount of **ONE HUNDRED THOUSAND DOLLARS ($100,000)** shall be provided at the time of contract execution. In the event the dollar amount of Work to be performed exceeds this amount on any given Work Order, the Contractor shall provide properly executed bond Change Riders, also in the form included in these Contract Documents, in the amount(s) not less than 100% of all Work Orders issued. All bonds shall be in the form prescribed by the City, executed by a surety company i) licensed to do business in the State of Colorado; ii) with a general rating of A and a financial size category of Class X or better in Best's Insurance Guide, each in the penal sum of the contract price; and iii) in conformance with C.R.S. §§ 38-26-105 and 106 ("Bonds"). All Bonds signed by an agent or attorney-in-fact shall be accompanied by a certified copy of the signatory's authority to act. The Contractor shall, at all times while providing, performing, or completing the Work including without limitation at all times while correcting any failure to meet warranty pursuant to the Standards and Specifications, maintain and keep in force the Bonds at the Contractor's expense.

b. If the Surety for any Bond furnished by the Contractor is placed in a receivership or declared bankrupt, or its rights to do business in Colorado are terminated, or it ceases to meet the requirements specified herein, the Contractor shall within five (5) days thereafter substitute another Bond and Surety, both of which shall be acceptable to the City.

8. **INSURANCE.**

a. The Contractor shall not commence work under any Work Order until it has obtained all insurance required herein and such insurance has been approved by City. The Contractor shall not allow any subcontractor to commence work on any Work Order until all similar insurance required of the subcontractor has been obtained and approved by the Contractor. For the duration of the Work Order, the Contractor must maintain the insurance coverage required in this section. The City's acceptance of a certificate of insurance or other proof of insurance that does not comply with all insurance requirements set forth in this Agreement shall not act as a waiver of the Contractor's breach of Agreement or of any of the City's rights or remedies under this Agreement.

b. The Contractor shall not be relieved of any liability, claims, demands, or other obligations assumed pursuant to the Contract Documents by reason of its failure to procure or maintain insurance, or by reason of its failure to procure or maintain insurance in sufficient amounts, durations, or types.

c. The Contractor shall procure and maintain at its own cost and shall cause each subcontractor of the Contractor to procure and maintain at its own cost (or shall

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insure the activity of Contractor's subcontractors in Contractor's own policy with respect to), the minimum insurance coverages listed below. Such coverages shall be procured and maintained with forms and insurers acceptable to the City and by and insurer with a financial standing of at least A- rating, as reflected in Best's insurance ratings or by a similar rating system recognized within the industry at the time the policy is issued. All coverages shall be continuously maintained from the date of Agreement execution. In the case of any claims-made policy, the necessary retroactive dates and extended reporting periods shall be procured to maintain such continuous coverage.

i. Workers' Compensation and Employers' Liability insurance in the minimum amount required by applicable law for all employees and other persons as may be required by law. The policy shall cover obligations imposed by the Workers' Compensation Act of Colorado and any other applicable laws for any employee engaged in the performance of Work.

ii. Commercial General Liability insurance with minimum combined single limits of ONE MILLION DOLLARS ($1,000,000) each occurrence and TWO MILLION DOLLARS ($2,000,000) aggregate. The policy shall be applicable to all premises and operations. The policy shall include coverage for bodily injury, broad form property damage (including completed operations), personal injury (including coverage for contractual and employee acts), blanket contractual, independent contractors, products, and completed operations. The policy shall include coverage for explosion, collapse, and underground hazards. The policy shall contain a severability of interests provision.

iii. Comprehensive Automobile Liability insurance with a minimum combined single limit for bodily injury and property damage of ONE MILLION DOLLARS ($1,000,000) with respect to each of Contractor's owned, hired and/or non-owned vehicles assigned to or used in performance of the Work. The policy shall contain a severability of interests provision.

d. The policies required above, except for the Workers' Compensation and Employers' Liability insurance and Professional Liability, shall be endorsed to include the City of Littleton as additional insured. Every policy required above shall be primary insurance, and any insurance carried by the City, its officers, or its employees, shall be excess and not contributory insurance to that provided by Contractor. The additional insured endorsement for the Commercial General Liability insurance required above shall not contain any exclusion for bodily injury or property damage arising from completed operations. The Contractor shall be solely responsible for any deductible losses under each of the policies required above.

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e. Certificates of insurance shall be completed by the Contractor's insurance company as evidence that policies providing the required coverages, conditions, and minimum limits are in full force and effect, and shall be subject to review and approval by the City. The certificate cannot contain "endeavor to" language in the portion of the certificate addressing cancellation. The City reserves the right to request and receive a certified copy of any policy and any endorsement thereto.

f. The coverages afforded under the policies shall not be cancelled, terminated or materially changed until at least thirty (30) days prior written notice has been given to the City. Failure on the part of the Contractor to procure or maintain policies providing the required coverages, conditions, and minimum limits shall constitute a material breach of Agreement upon which the City may immediately terminate the Agreement, or at its discretion may procure or renew any such policy or any extended reporting period thereto and may pay any and all premiums in connection therewith, and all monies so paid by the City shall be repaid by Contractor to the City upon demand, or the City may offset the cost of the premiums against any monies due to Contractor from the City.

g. The Parties hereto understand and agree that the City is relying on, and does not waive or intend to waive by any provision of this Agreement, the monetary limitations or any other rights, immunities, and protections provided by the Colorado Governmental Immunity Act, C.R.S. § 24-10-101 et seq., as from time to time amended, or otherwise available to the City, its officers, or its employees.

9. **TERMINATION**

a. *Termination for Convenience of City*. This Contract and the performance of the Work hereunder may be terminated by the City at any time, in whole or in part, for convenience. Any such termination shall be effected by delivery to the Contractor of a written notice ("Notice of Termination") specifying the extent to which performance of Work is terminated, the date upon which termination becomes effective, and any necessary actions to be taken by the Contractor to effectuate termination and close-out the Contract. If the Contract is terminated, the Contractor shall be paid on a prorated basis of Work satisfactorily completed, under the Work Order(s). The portion of Work satisfactorily completed but not yet accepted by the City shall be determined by the City.

b. *Termination for Default of Contract.* Termination for default of contract and subsequent remedies shall be in accordance with the Littleton Standards and Specifications.

10. **CONFIDENTIALITY.** Notwithstanding any provision in the Agreement to the contrary, the City is obligated to comply with the Colorado Open Records Act (C.R.S. §§24-72-101 *et seq.*), which may require the City to disclose all or a portion of communications relating to the Agreement, or terms of same, or of any transaction under the Agreement, and other related matters. The Contractor has been advised to familiarize

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itself with the Colorado Open Records Act. In no event shall the City be liable to the Contractor for the disclosure of all or a portion of communications, or relating documents, or electronic imaging, including all documents and exhibits that may be included as part of this Agreement.

11. **EXAMINATION OF RECORDS AND AUDITS.** Any authorized agent of the City, has the right to access, and the right to examine, copy and retain copies, at the City's election in paper or electronic form, any pertinent books, documents, papers and records related to the Contractor's performance pursuant to this Agreement, provision of any goods or services to the City, and any other transactions related to this Agreement. The Contractor shall cooperate with City representatives and City representatives shall be granted access to the foregoing documents and information during reasonable business hours and until the latter of three (3) years after the final payment under this Agreement or expiration of the applicable statute of limitations. When conducting an audit of this Agreement, the City shall be subject to government auditing standards issued by the United States Government Accountability Office by the Comptroller General of the United States, including with respect to disclosure of information acquired during the course of an audit. No examination of records and audits pursuant to this paragraph shall require the Contractor to make disclosures in violation of state or federal privacy laws.

12. **OWNERSHIP OF WORK PRODUCT.** The originals of all photographs, reports, studies, stories, or other materials or information relating to the Work that are produced by the Contractor shall be delivered to and become the property of the City. No reports, graphics or other material produced specifically for the City under this Agreement shall be the subject of an application for copyright or trademark by or on behalf of the Contractor. The Contractor may retain copies of any originals; however, no plans, reports, studies, data, or other materials or information relating to the Work shall be released to any person or entity without the prior written consent of the City.

13. **TAXES, CHARGES, AND PENALTIES.** The City of Littleton is not subject to taxation. The Contractor shall not invoice the City for any state, federal or local taxes, late charges, or penalties whatsoever. The Contractor shall promptly pay when due, all taxes, bills, debts and obligations it incurs performing the services under this Agreement and shall not allow any lien, mortgage, judgment or execution to be filed against City property. Upon written notification by the City, the Contractor shall reimburse the City in a timely manner for any taxes erroneously paid by the City.

14. **SUBCONTRACTING OR ASSIGNING OF CONTRACT**. No contractual relationship will be recognized under the Agreement other than the contractual relationship between the City and Contractor. No portion of the Agreement or Work Order shall be subcontracted, assigned or otherwise disposed of except with the written consent of the City and Surety, which consent shall not be unreasonably withheld. Requests for permission to subcontract, assign or otherwise dispose of any portion of the Agreement or a Work Order shall be in writing and accompanied by a showing that

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the subcontractor which will perform the Work is particularly experienced and equipped for such Work. Consent to subcontract, assign or otherwise dispose of any portion of the Agreement or a Work Order shall not be construed to relieve the Contractor of any responsibility for the fulfillment its responsibilities and obligations. Further, the Contractor shall be responsible for any failure by any subcontractor or subcontractor personnel to perform in accordance with this Agreement or a Work Order, or to comply with any duties or obligations imposed on the Contractor to the same extent as if such failure to perform or comply was committed by the Contractor or the Contractor's personnel.

15. **WAIVER OF BREACH.** A waiver by any Party to the Agreement or the breach of any term or provision of the Agreement shall not operate or be construed as a waiver of any subsequent breach by either Party.

16. **NO THIRD-PARTY BENEFICIARIES.** It is expressly understood and agreed that enforcement of the terms and conditions of this Agreement, and all rights of action relating to such enforcement, shall be strictly reserved to the City and the Contractor and nothing contained in this Agreement shall give or allow any such claim or right of action to any other third-party on this Agreement. It is the express intention of the City and the Contractor that any person other than the City or the Contractor receiving services or benefits under this Agreement shall be deemed to be an incidental beneficiary only.

17. **INDEPENDENT CONTRACTOR.** The Contractor shall perform the Work as an independent contractor and shall not be deemed by virtue of this Agreement to have entered into any partnership, joint venture, employer/employee or other relationship with the City other than as a contracting party and independent contractor.

18. **ACCESSIBILITY STANDARDS.** The Contractor shall comply with the accessibility standards for an individual with a disability adopted by the Colorado Office of Information Technology, in accordance with C.R.S. § 24-85-103 and its implementing regulations. Notwithstanding the foregoing, this requirement shall not be applicable to contracts or agreements for professional services, as defined by C.R.S. § 24-30-1402, or to any portion or part of the contract or agreement that is providing professional services. Further, the Contractor shall indemnify, hold harmless, and assume liability on behalf of the City and the City's officers, employees, and agents, for all costs, expenses, claims, damages, liabilities, court awards, attorney fees and related costs, and any other amounts incurred by the City in relation to the Contractor's noncompliance with the accessibility standards for an individual with a disability adopted by the Colorado Office of Information Technology, in accordance with C.R.S. § 24-85-103, and its implementing regulations.

19. **NON-DISCRIMINATION.** In connection with the performance of the Work, the Contractor will not discriminate against any employee or applicant for employment because of race, color, religion, national origin, ethnicity, citizenship, immigration status, sex, gender, age, sexual orientation, gender identity or gender expression,

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marital status, source of income, military status, protective hairstyle, genetic information, pregnancy, or disability, or any other status protected by applicable law. The Contractor will take affirmative action to ensure applicants are employed, and employees are treated during employment, without regard to their race, color, religion, national origin, ethnicity, citizenship, immigration status, sex, gender, age, sexual orientation, gender identity or gender expression, marital status, source of income, military status, protective hairstyle, genetic information, pregnancy, disability, or any other status protected by applicable law. Such action shall include, but not be limited to the following: employment, upgrading, demotion or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship.

20. **INDEMNIFICATION.** The Contractor agrees to investigate, defend, indemnify and hold harmless the City, its officers, employees, insurers, and self-insurance pool, from and against all liability, claims and demands on account of any losses, injuries, and damages, including but not limited to, alleged personal injury claims, and/or death claims, or property damage claims, or errors and omissions, which arise solely out of the Contractor's and/or any of its agents' officers or employees performance of the Contractor's obligations under this Agreement. The City of Littleton is prohibited by Article XI, Section 1, Colorado Constitution, from indemnifying any individual or entity. Therefore, the City does not indemnify the Contractor, successors, or assigns under this Agreement. Notwithstanding the foregoing, nothing herein is intended to constitute a covenant, promise, or agreement to indemnify and hold harmless the City from any liability or damages directly caused by or attributable to the City's own negligence, nor is anything herein intended to be nor may be construed as a waiver of the immunities, protections, or limitations on damages provided to the City by the Colorado Governmental Immunity Act, C.R.S. §§24-10-101 et seq., as it may from time to time be amended. Insurance coverage requirements specified in this Agreement shall in no way lessen or limit the liability of the Contractor under the terms of this indemnification obligation. The Contractor shall obtain, at its own expense, any additional insurance that it deems necessary for the City's protection. This defense and indemnification obligation shall survive the expiration or termination of this Agreement.

21. **GOVERNING LAW AND VENUE.** The Agreement shall be governed by the laws of the State of Colorado. Venue for any action arising under the Agreement or for the enforcement of the Agreement shall be in the appropriate court for Arapahoe County, Colorado.

22. **NO WAIVER OF GOVERNMENTAL IMMUNITY.** Nothing contained in this or any of the exhibits attached thereto shall be construed as a waiver of any of the immunities, limitations, privileges, rights, procedures, or requirements contained in the Colorado Governmental Immunity Act, C.R.S. §§24-10-101 *et seq.*

23. **FORCE MAJEURE.** Any delays in or failure of performance by any Party of their obligations under this Agreement shall be excused if such delays or failure are a result

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of acts of God, fires, floods, strikes, labor disputes, accidents, regulations or orders of civil or military authorities, shortages of labor or materials, or other causes, similar or dissimilar, which are beyond the control of such Party.

24. **ADDITIONAL DOCUMENTS OR ACTION.** The Parties agree to execute any additional documents and to take any additional action that is necessary to carry out this Agreement.

25. **BINDING EFFECT.** This Agreement shall inure to the benefit of, and be binding upon, the Parties, their respective legal representatives, successors, heirs, and assigns; provided, however, that nothing in this section shall be construed to permit the assignment of this Agreement except as otherwise expressly authorized herein.

26. **SECTION CAPTIONS.** The section captions in this Agreement are set forth only for the convenience and reference of the Parties and are not intended in any way to define, limit or describe the scope or intent of this Agreement.

27. **INTEGRATION, AMENDMENT, AND SEVERABILITY.** This Agreement represents the entire agreement between the Parties and there are no oral or collateral agreements or understandings. This Agreement may be amended only by an instrument in writing signed by the Parties. If any other provision of this Agreement is held invalid or unenforceable, no other provision shall be affected by such holding, and all of the remaining provisions of this Agreement shall continue in full force and effect.

28. **SUBJECT TO LEGISLATIVE APPROVAL AND COMPLIANCE WITH LAW.** The Contractor acknowledges and agrees that if a Change Order is required under the terms of the Contract, the City shall not incur any liability whatsoever for claims of payment, compensation, damages, or adjustment of any kind by the Contractor due to any delays for the required approvals and execution under the City's Purchasing Ordinance. The Contractor further acknowledges and agrees that this Contract's execution may be contingent upon approval by the City Council, in compliance with all applicable provisions of the City Charter and City Code. The City shall not incur any liability whatsoever if this Contract is not approved by City Council.

29. **NOTICES.** All notices required under this Agreement shall be in writing and shall be sent by registered or certified mail, return receipt requested, to the addresses of the Parties herein set forth. A Party may change its mailing address by giving written notice of such change of address to other Party.

Notice to City:
City of Littleton
City Manager
2255 West Berry Avenue
Littleton, CO 80120

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Notice to Contractor:

30. **BINDING AUTHORITY.** The Contractor represents and affirms that the signature page hereof accurately states the full legal name of Contractor (whether as a corporation, partnership, limited liability company, sole proprietorship, or other), contains all requisite signature(s) on behalf of Contractor, has been properly acknowledged by attestation, notary acknowledgment, or both, and in all other respects is effective to bind Contractor, in accordance with all applicable statutes, regulations, resolutions, rules, bylaws, agreements, or similar sources of authority or limitation. This Agreement may be executed in counterpart(s), each of which shall be deemed to be an original, and all of which, taken together, shall constitute one instrument.

31. **ELECTRONIC SIGNATURES AND ELECTRONIC RECORDS.** The Contractor consents to the use of electronic signatures by the City. The Contract, and any other documents requiring a signature hereunder, may be signed electronically by the City in the manner specified by the City. The Parties agree not to deny the legal effect or enforceability of the Agreement solely because it is in electronic form or because an electronic record was used in its formation. The Parties agree not to object to the admissibility of the Agreement in the form of an electronic record, or a paper copy of an electronic document, or a paper copy of a document bearing an electronic signature, on the ground that it is an electronic record or electronic signature or that it is not in its original form or is not an original.

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